

Court No. - 9

Case :- WRIT - C No. - 20273 of 2010

Petitioner :- Mohd. Shahjad

Respondent :- U.P. Power Corpn. Ltd. & Ors.

Petitioner Counsel :- Saurabh Srivastava, P.K. Singh

Respondent Counsel :- Pankaj Kr. Shukla

Hon'ble Vijay Manohar Sahai, J.

Hon'ble Raj Mani Chauhan, J.

Heard Sri Sarad Kumar Srivastava holding brief of Sri Saurabh Srivastava learned counsel for the petitioner and Sri Pankaj Kumar Shukla appearing for respondents.

The learned counsel for the petitioner has urged that a first information report was lodged against the petitioner for theft of electricity but the police has submitted final report as the theft has not been established. The order was challenged by the petitioner by filing Criminal Revision before this Court. Subsequently the respondents withdrawn the criminal proceedings and now they are proceeding against the petitioner with regard to the theft of the electricity after making final assessment. It is urged that the final assessment could not be made against the petitioner as the theft of electricity had not been established in view of paragraph no.8(1)(b)(iv) of the Electricity Supply Code, 2005.

We find force in the argument of the learned counsel for the petitioner and therefore, petitioner is entitled for interim relief.

Until further orders of this Court the recovery proceedings against the petitioner in pursuance of the order dated 4.3.2010 passed by respondent no.3 (Annexure no.3 to the writ petition) shall remain stayed.

Order Date :- 19.4.2010

Prajapati